PARTNERS
of the AMERICAS

Partners of the Americas:

Supervisor's Guide to Discipline and Documentation

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Agenda

- Recognize Principles of Effective Employee Discipline
- Determine How to Respond
- Document the Employee

Determine How to Respond

- Distinguishing between **major** and **minor** issues.
- Minor conduct issues may not require formal actions or disciplinary procedures.
- More serious issues, outlined in the Code of Conduct or other Partners policies may require formal disciplinary action. Whenever in doubt, talk to HR

OO. Progressive Disciplinary Actions

Partners reserves the right to address employee performance or conduct issues with appropriate disciplinary actions, including warnings, suspension, or termination. Decisions will be based on the severity of the issue, the employee's past performance, and business needs. HR and the employee's supervisor will document by completing a disciplinary process report on the template in SharePoint. This approach aims to resolve issues early, supporting both employees and Partners. Employees should reference Partners of Code of Conduct, which lists examples of unacceptable conduct that might result in immediate suspension or termination of employment. By using progressive discipline, Partners hopes that most employee problems can be corrected at an early stage, benefiting both the employee and Partners.

Disciplinary Steps: Partners may use progressive discipline, typically following these steps:

- Verbal warning
- Written warning
- Performance Improvement Plan or Suspension (with or without pay)
- Termination of employment

Disciplinary Process:

- For minor issues, a verbal or written warning will be issued, detailing reasons and any evidence.
- Decisions will account for the issue's severity and frequency. Based on these factors, steps may be skipped.
- A second review by the President & CEO or another Executive Leader is required before any dismissal.

If more than one year has passed since the last action, the process typically restarts. In severe cases, Partners may decide on suspension or termination without progressive steps.

Performance Improvement Plan (PIP)

As part of progressive discipline, Partners may issue a Performance Improvement Plan (PIP). A PIP is typically initiated when an employee's performance consistently falls below established expectations despite prior feedback or support. The PIP is a process designed to support employees in enhancing their performance and achieving specific job-related goals. The PIP outlines clear expectations, identifies areas for improvement, and establishes measurable objectives to be met within a designated timeframe. It serves as a collaborative framework between the employee and their supervisor, fostering open communication and providing the necessary resources and support to facilitate improvement. Employees on a PIP will receive regular feedback and have opportunities to discuss their progress. The ultimate aim of the PIP is to help employees succeed in their roles, contributing to both their personal growth and the overall success of the organization. PIP must be issued using the template on SharePoint.

Code of Conduct Outlines MAJOR ISSUES

II. Code of Conduct

Partners endeavors to maintain a positive work environment. Each employee plays a role in fostering this environment. Accordingly, we all must abide by certain rules of conduct, based on honesty, common sense, and fair play. Unacceptable conduct may subject the offender to disciplinary action, up to and including termination, in Partners sole discretion.

The following are examples of some, but not all, conduct which can be considered unacceptable:

- Obtaining employment on the basis of false or misleading information.
- Stealing, removing, or defacing Partners property or a co-worker's property, and/or disclosure of confidential information.
- Completing or editing another employee's timesheet without approval.
- Sharing of passwords for your work accounts to anyone else unless specific approval is given (i.e. shared PandaDoc account per unit).
- Violation of Partners' code of conduct, including but not limited to policies on Equal Employment Opportunity, harassment, confidentiality, conflict of interest, trafficking in persons, sexual exploitation and abuse, and child safeguarding.
- Violation of safety and security rules and policies.
- Violation of Partners' Drug and Alcohol-Free Workplace and Smoking Policy.
- Fighting, threatening, or disrupting the work of others or other violations of Partners' Workplace Violence Policy.

- Failure to follow lawful instructions of a supervisor.
- Failure to perform assigned job duties.
- Violation of the attendance policy, including but not limited to irregular attendance, habitual lateness, or unexcused absences.
- Pornography or access to any sexual or violent content and website or access to the dark web on Partners property.
- Gambling on Partners property.
- Willful, careless, or wasteful destruction or damage to Partners assets or to the equipment or possessions of another employee.
- Performing work of a personal nature during working time.
- Violation of Partners IT policies.
- Unsatisfactory job performance.
- Any other violation of Partners policy.

Disciplinary Documents

- The location of the disciplinary process and PIP templates are →→→→
- Components of a disciplinary process and PIP document

Organizational F&A > HR > **HR Policies & Employee Manual**

Name
Disciplinary Process Report
Employee Manual
Employee Recognition & Awards Policy Draft
Expat Benefit Policy
Flex Work Arrangement
Gender Identity Policy
Harassment Policy
Healthy Workplace Policy
Non-Discrimination Policy
Overtime Policy
Participant Well-Being - Emergency Response
Performance Improvement Plan (PIP)

Performance Issues *Verbal or Documented**

- Identify the specific issue and provide examples
  - Has the employee received prior discussions or warnings?
- Explain what is expected of the employee
- Outline what will happen if performance does not improve
- Ask and offer support to the employee

Disciplinary Process Report

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Employee's name:		**Supervisor's name:**		**Meeting Date:**	
Position of the employee:		**Supervisor's position:**		**Unit/Program**	

1. Type of Correction Action: Check one:

☐	Verbal	☐	Suspension _____ # of Days		
☐	Written	☐	Termination		

2. Specific examples of incident/problem/issue/behavior Demonstrated: (EX: Violation of Rules, Policies, Standards, Unsatisfactory Performance)

3. Has the Employee received prior discussions or warning about this or similar incidents before? ☐ Yes ☐ No

If yes, please include an executive summary of the prior discussion or warning that took place

DATE	PRIOR WARNINGS OR DISCUSSIONS}

4. Consequences if performance does not improve or is corrected: (Explain the consequence)

Failure to comply and maintain improved performance may result in further disciplinary action, up to and including termination. Corrective action may be taken in conjunction with, during, or after the disclinary process report or performance improvement plan

Review completed by:

Employee: (Signature)		**Supervisor: (Signature)**	
Human Resources: (Signature)		**Unit/Program Director/Witness: (Signature)**	

This performance plan is not intended to be an employment contract or guarantee of continued employment.
Copy: Employee
Original: Personnel file

*When issuing a written warning, you **MUST** have someone else present with you to witness the conversation taking place and can sign the document in case the employee refuses too.

Performance Improvement Plan

Performance Improvement Plan

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1. Initial Performance

Employee's name:		**Supervisor's name:**		**Meeting Date:**	
Position of the employee:		**Supervisor's position:**		**Unit/Program**	

Performance Standard(s) under Review: (Check all that apply):

☐	Productivity	☐	Efficiency	☐	Teamwork
☐	Quality	☐	Technical	☐	Conduct
☐	Other (define):	☐	Other (define):	☐	Other (define):

Provide specific examples of the performance standard(s) under review

Instances prior to this PIP: (Observations and prior feedback made before PIP. Must include dates and details)

DATE	OBSERVATIONS OR SITUATIONS

2. Actions and Follow-up

(Improvement plan, what is expected, how it is to be achieved and in what time frame. Create deliverables as a result of the objectives and next steps 30, 45 and 60 days).

N°	Area of concern	**Development area:** detail the area requiring attention and improvement.	Describe the level of expected result	Agreed improvement actions	**Support** -definition of the support required and provided to achieve the expected result.	Date of follow-up: dd/mm/year	**Observations:** detail the results evidenced	% Compliance with improvement
Example	The dates established in the schedule were not met in two consecutive months.	Example: planning and organization	Organization and planning of daily, weekly and monthly work to comply with the dates established in the schedule, prioritizing activities.	Use the Scrum methodology to keep track of tasks.	One on one with a certified Scrum Project Manager and an overview of the methodology			

Employee signature:		**Signature Supervisor:**		**Date:**	

3. Plan results

☐	Performance Action Plan Satisfactorily Completed at: ___/_____/_____
☐	Corrective Action Required (attach and send to Human Resources)

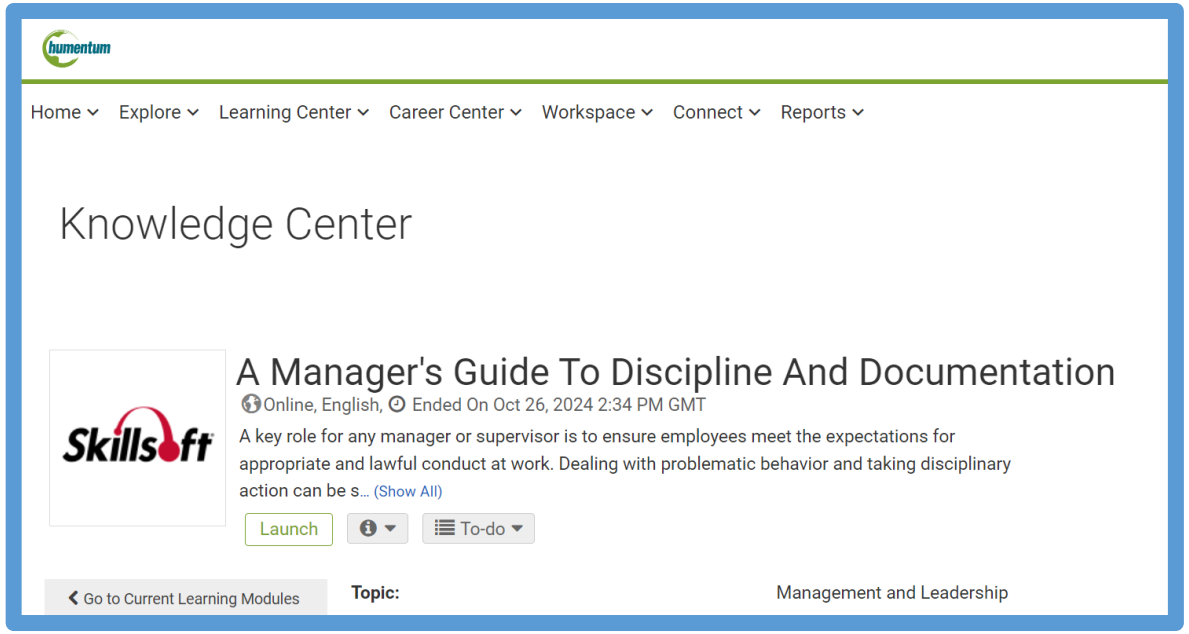
Failure to comply and maintain improved performance may result in further disciplinary action, up to and including termination. Corrective action may be taken in conjunction with, during or after the performance improvement plan.

Review completed by:

Employee: (Signature)		**Supervisor: (Frima)**	

Effective Employee Discipline Principles

1. Maintain Regular Communication with Employees
2. View Discipline as Corrective Rather Than Punitive
3. Use a Progressive Approach
4. Be Fair and Consistent
   - Disciplinary action cannot be taken based on legally protected characteristics, including race, color, religion, sex, national origin, age, or disability
   - Ensure consistent discipline for similar offenses between employees
5. Keep Accurate and Thorough Documentation



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Questions

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